Manhar Sinh Jadeja vs The State (Govt. Of Nct Of Delhi) on 2 December, 2025

Author: Neena Bansal Krishna

Bench: Neena Bansal Krishna

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* IN THE HIGH COURT OF DELHI AT NEW DELHI

+ BAIL APPLN. 3271/2025

MANHAR SINH JADEJA
Through: Mr
Mr

versus

THE STATE (GOVT. OF NCT OF DELHI) .....Respo
Through: Mr. Utkarsh, APP for the Stat
SI Nitesh Sharma
CORAM:
HON'BLE MS. JUSTICE NEENA BANSAL KRISHNA
ORDER

% 02.12.2025

1. The present Bail Application has been filed by the Applicant/Manhar Sinh Jadeja under Section 483 of the Bharatiya Nagarik Suraksha Sanhita, 2023 (hereinafter 'BNSS'), seeking regular bail in FIR No. 483/2024 dated 17.10.2024, registered at Police Station Special Cell (IFSO), New Delhi, for offences punishable under Sections 308(2), 318(4), 319(2), 3(5), and 61(1) of the Bharatiya Nyaya Sanhita, 2023 (hereinafter „BNS).

2. Briefly stated, the present FIR was registered on the Complaint of one Sh. Devi Dayal Rustagi, a senior citizen who alleged to have been a victim of a "Digital Arrest" scam between 25.09.2024 and 11.10.2024. He received calls from individuals impersonating as officials from the Mumbai Police and the Enforcement Directorate (ED), claiming that a Parcel sent using his Aadhaar to Beijing, China, contained illegal items. Under the threat of arrest and interrogation, the complainant was coerced into transferring a total sum of Rs. 10,30,00,000/- into various Bank Accounts provided by the fraudsters This is a digitally signed order.

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3. During the course of the investigation, the money trail revealed that out of the total cheated amount, a sum of Rs.3,00,00,000/- was transferred directly into the ICICI Bank Account bearing No. 341305500115, in the name of the Applicant/Manhar Sinh Jadeja.

4. The Petitioner was arrested on 31.01.2025. The investigation revealed that the petitioner had allegedly provided his bank account kit, SIM card, and Net Banking credentials to a co-accused/Ahir Akash, for a monetary gain of Rs. 2 Lakhs, thereby facilitating the layering of „proceeds of crime .

5. The Applicant was served with a Notice under Section 35(3) of the BNSS but he failed to join the investigation initially.

6. The Applicant was arrested on 31.01.2025. Following the investigation, a Charge Sheet was filed against the Applicantand other co-accused persons on 27.03.2025. Section 61(1) of the BNS (criminal conspiracy) was subsequently added to the offences.

7. The Applicant s Bail applications were previously dismissed by the Court of the CJM on 19.03.2025 and 08.04.2025. Subsequently, his regular Bail Application was also dismissed by the Ld. ASJ, Patiala House Courts, on 24.07.2025. The Applicantwas, however, granted interim bail on two occasions (i.e on 13.05.2025 and 05.06.2025) on the grounds of treatment of his mother, and he surrendered timely upon the expiry of the said periods.

8. Aggrieved by the continued incarceration, the Applicanthas approached this Court for grant of regular Bail.

9. Learned Counsel for the Applicantsubmits that the Applicantis innocent and has been falsely implicated. The Applicant was unaware of the fraudulent nature of the transactions and had provided his bank account details to the co-accused, Ahir Akash, under the false pretext of securing This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 04/12/2025 at 21:28:44 better financial future. It is further contended that the Applicantdid not make any withdrawals from the said account and has not benefited from the alleged cheated amount.

10. Learned Counsel emphasizes that the Applicant has been in judicial custody since 31.01.2025, and since the Chargesheet has already been filed, his further custody is not required.

11. It is further highlighted that the Applicant was granted interim bail on two occasions for the medical treatment of his mother and had surrendered timely upon the expiry of the interim Bail, demonstrating that he is not a flight risk.

12. Reliance has been placed on the judgment of the Apex Court in Sanjay Chandra vs. CBI, arguing that the object of bail is to secure the appearance of the accused and not to punish him before trial.

13. The learned APP for the State has vehemently opposed the Bail Application. It is submitted that this is a case of a grave economic offence involving a "Digital Arrest" scam where a senior citizen was defrauded of life savings amounting to Rs. 10.3 Crores.

14. The learned APP points out that there is direct documentary evidence in the form of banking transactions showing that the Applicantis a "first layer"

> beneficiary who received Rs. 3 Crores in his account. It is argued that the petitioner knowingly handed over his banking credentials and SIM card to facilitate this fraud, in exchange for a commission.

15. Furthermore, the State submits that the petitioner is a habitual offender involved in similar cyber fraud activities, as evidenced by his involvement in FIR No. 363/24 registered at PS Cyber Police Thane, Mumbai.

16. It is contended that releasing the Applicanton Bail would hamper the This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 04/12/2025 at 21:28:44 trial and investigations into the wider crime Syndicate. Submissions Heard and Record Perused

17. The allegations against the Applicantare serious in nature. The modus operandi involves a sophisticated cyber fraud syndicate targeting vulnerable citizens. The specific allegation against the Applicantis that he acted as a "money mule" by allowing his Bank Account to be used for siphoning of Rs. 3 Crores, which is a significant portion of the total cheated amount of Rs. 10.3 Crores.

18. The contention of the Applicantthat he was unaware of the fraud and handed over his credentials solely for employment purposes, does not inspire confidence at this stage. Providing one s original SIM card linked to a bank account, along with Net Banking credentials, to a third party facilitates anonymity for cybercriminals.

19. The investigation indicates that this was done for a pecuniary gain of Rs. 2 Lakhs. Without such "mule accounts," the execution of such large-scale financial frauds would be impossible.

20. While it is true that the charge sheet has been filed, the court cannot lose sight of the fact that economic offences constitute a class apart and need to be visited with a different approach in the matter of Bail. The economic offence having deep-rooted conspiracies and involving huge loss of public funds needs to be viewed seriously.

21. Furthermore, the Applicant s antecedents are not clean. The investigation has brought on record his involvement in another cyber fraud case, FIR No. 363/24 at PS Cyber Police Thane, Mumbai. This suggests a pattern of behaviour and involvement in pan-India criminal activities.

22. The mere fact that the Applicant surrendered after interim Bail does not This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 04/12/2025 at 21:28:44 automatically entitle him to regular bail, especially when viewed against the gravity of the offence and the strength of the evidence, i.e. banking trail, against him.

23. Considering the gravity of the offence, the huge quantum of money involved, the Applicant s role in facilitating the layering of proceeds, and his involvement in other similar cases, this Court is not inclined to grant Bail to the Applicant at this stage.

24. Accordingly, the Bail Application is dismissed.

25. It is clarified that any observation made herein is only for the purpose of deciding the present Bail Application and shall not be construed as an expression on the merits of the case pending before the Ld. Trial Court.

NEENA BANSAL KRISHNA, J.

DECEMBER 2, 2025 This is a digitally signed order.

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